

25STCV02597 25STCV02597

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV02597 Hearing Date: August 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 24, 2026

Case Name: Daley v. Siemens Industry, Inc., et al.

Case No.: 25STCV02597

Matter: Motions to Compel Further Responses (3x)

Ruling: The Motion as to form interrogatories is continued.

The Motion as to documents is granted.

The Motion as to special interrogatories is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On January 30, 2025, Plaintiff Douglas Daley filed the operative Complaint for (1) violation of Song-Beverly Act, (2) violation of Magnuson-Moss Act, (3) negligent repair, (4) breach of contract/implied covenant of good faith and fair dealing, (5) fraud/concealment, (6) elder abuse, and (7) theft by false pretenses.

Plaintiff alleges as follows: Defendants Aviv Shitrit, Tal Shitrit, Eco Home Solutions, Inc., and others visited his home without solicitation; Defendants told Plaintiff that he needed to replace his solar panel, electrical panel, and HVAC system; Plaintiff refused; despite this, the Shitrits and others obtained a fraudulent loan in Plaintiff's name by forging his signature and then replaced the aforementioned components without consent; and the new solar panel, electrical panel, and HVAC system are defective and cannot be repaired.

Defendant Eco Home Solutions, Inc. now asserts three Motions to Compel Further Responses as to its Requests for Production (RFPs), Special Interrogatories (SIs), and Form Interrogatories (FIs).

Form Interrogatories

Eco Home Solutions Inc.'s Motion to Compel Further Responses as to FIs was previously continued because of a service issue.

Plaintiff again asserts that it has not received the moving papers, while Defendant insists that it has not received an opposition.

The recent declaration of Defendant does not mention that the moving papers were ever re-served, but only that Plaintiff has known about the "existence" of the FIs since the prior July 2026 hearing.

The Motion is continued one final time. The motion papers are to be served on Plaintiff at the Motion hearing via electronic means or otherwise.

Special Interrogatories

Eco also seeks to compel further responses to its SIs from Plaintiff.

The Motion is denied as to SI no. 4 because the response was substantially compliant despite the unnecessary narrative.

The Motion is granted as to SI no. 5 because the response is incomplete and/or evasive. Plaintiff should simply respond to the precise interrogatory.

The Motion is granted as to SI nos. 7 and 8 because the answer was nonresponsive.

The Motion is denied as to SI nos. 10 and 13 because the response is sufficient.

The Motion is granted as to SI no. 15. The response to each interrogatory should in itself be complete without reference to other responses.

The Motion is denied as to SI nos. 16 and 18 because the response is simply that the symptoms happen after installation at any time the system is used.

The Motion is denied as to SI no. 17.

The Motion is granted as to SI no. 19 because the answer is nonresponsive.

The Motion is granted as to SI no. 20 as has already been explained.

The Motion is granted as to SI no. 26 because the response is insufficient and generalized.

The Motion is granted as to SI nos. 30, 35, and 36,

The Motion is denied as to SI nos. 31, 33, 34, and 37. Some of these SIs were already asked and answered.

The Motion is granted in part. Further responses within 20 days. No sanctions.

Requests for Production

Eco also seeks to compel further responses to its RFPs from Plaintiff.

The Motion is granted as to RFP nos. 1-24. These requests appropriately seek documents showing, among other things, the defects of the solar panels, Plaintiff's damages, and witness information. Plaintiff improperly asserts objections and only indicates that it will comply in part when the documents are relevant. Plaintiff's identification of documents is also too general. Bates numbers should be provided.

Further responses and production are to be provided within 20 days.

Plaintiff and his counsel are sanctioned, jointly and severally, in the amount of \$1,000, which is to be paid within 30 days.

Moving party to give notice.